



County Council Meeting December 12th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=CgezOM5YWXg
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Delaware County Council Meeting Summary

Meeting Date: December 12, 2023

Body: Delaware County Council

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer Jessica Piper called the Delaware County Council regular meeting to order at [00:06:06](#).
- **Attendance:**
 - **Present:** Mr. Flanigan, Mr. Hughes, Mr. Clevenger, Mr. Matchett, Mr. Webb, Mr. Quiahead, Ms. Swad, Ms. Piper.
 - **Absent:** None explicitly noted.
 - **Presiding Officer:** Jessica Piper (Council President).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:06:08](#).
- **Approval of Minutes:**

- November 21st County Council Minutes: Approved by Roll Call Vote (Mr. Piper abstained).
 - November 28th Special Council Meeting Minutes: Approved by Roll Call Vote (Mr. Clevenger and Mr. Webb abstained).
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4. Substantive Business & Board Action

Financial Transfers & Appropriations Agenda

- **00:09:18 County General - Circuit Court (Fund 138):**
 - **Sponsor / Presenter:** T. / Court Administration.
 - **Deliberation Summary:** Transfer of funds totaling zero net change, reallocating lines for part-time probation, administration, office equipment, law books, and supplies (noting replacement needs for copiers purchased in 2014-2016).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:11:53 County General - Clerk (Fund 125):**
 - **Sponsor / Presenter:** Clerk's Office.
 - **Deliberation Summary:** Line-item transfers for deputy clerk positions totaling zero net change. Noted as favorable by the finance committee.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed; Ms. Piper voted No).
- **00:12:44 County General - Communications (Fund 124):**
 - **Sponsor / Presenter:** Communications Department.
 - **Deliberation Summary:** Transfers involving communications technicians, overtime, training, health insurance, uniform allowances (\$180 credit per person via local vendor), and miscellaneous equipment (computer monitors for Tahoes, canopies).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:16:06 County General - EMS (Fund 155):**
 - **Sponsor / Presenter:** EMS Department.
 - **Deliberation Summary:** Transfers for Advanced EMT lines and holiday/overtime pay. Staff explained that EMS personnel receive straight pay year-round and receive lump-sum payouts twice a year for worked holidays rather than traditional holiday overtime.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:19:18 County General - Public Defender Office (Fund 139):**
 - **Sponsor / Presenter:** Michelle / Public Defender Office.
 - **Deliberation Summary:** Transfers addressing court-ordered attorney fees, insurance lines, interpreters, and investigator/psychological testing fees due to an unusually high volume of murder trials and appeals.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).

- **00:22:41 County General - Treasurer (Fund 127):**
 - **Sponsor / Presenter:** Delaware County Treasurer.
 - **Deliberation Summary:** Transfers for office supplies (replacement counterfeit cash detector), bank fees, printing, and computers (replacing a 6-year-old computer required for First Merchants bank deposit software).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:25:56 Supplemental Adult Fund (Fund 2100):**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Appropriate non-reverting funds for office machines, specifically replacing 15 probation officer laptops and 5 surface pros purchased during the 2020 pandemic.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:29:47 Community Corrections (Fund 2501):**
 - **Sponsor / Presenter:** Melissa Richie, Community Corrections.
 - **Deliberation Summary:** Transfers for peer recovery coaches, contractual services (home detention monitoring due to increased client volume), and building lease adjustments.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:32:04 Public Defender Office Supplemental (Fund 12200):**
 - **Sponsor / Presenter:** Shelley Harvey, Public Defender Office.
 - **Deliberation Summary:** Transfers for longevity pay, file maintenance, witness fees, postage, and subscriptions. Staff noted two attorney longevity payments were accidentally omitted from the general budget and are being covered out of supplemental funds.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:34:31 Omnibus Financial Motion:**
 - **Action & Vote Disposition:** Motion to approve all financial transfers and amend the salary ordinance with like reductions. Approved by Roll Call Vote (Passed Unanimously).

Board Appointments

- **00:35:12 Alcohol Beverage Board:**
 - **Appointee Selected:** Doug Hutchinson (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote.
- **00:40:53 Animal Control Board (Veterinarian):**
 - **Appointee Selected:** Dr. Boyce (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote.
- **00:42:09 Daleville Economic Development Commission:**
 - **Appointee Selected:** Brent Chadum (reappointed).

- **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Webb voted for Jared Green).
- **00:44:31 Housing Authority:**
 - **Appointees Selected:** Forest Bowers and Bob Wilson (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:48:47 Property Tax Assessment Board of Appeals:**
 - **Appointee Selected:** Carrie Wiggly (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **00:51:34 Redevelopment Commission:**
 - **Appointees Selected:** Rob Keeling and Amber Green.
 - **Action & Vote Disposition:** Approved by Roll Call Vote.
- **00:56:37 Regional Wastewater District:**
 - **Appointee Selected:** Joe Boyce (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **01:01:57 Yorktown Economic Development Commission:**
 - **Appointee Selected:** Dan Flanigan (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Klevenger and Mr. Webb voted for Aubrey Christ).
- **01:04:12 Community Corrections Board (Council Representative):**
 - **Appointee Selected:** Eugene.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **01:04:55 EMA Advisory Board:**
 - **Appointee Selected:** Matt Klevenger (reappointed).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **01:04:47 Tax Abatement Committee:**
 - **Appointees Selected:** Bill Hughes, Josh Perkins, and Joe Bar (Slate).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **01:06:50 Council Attorney Contract:**
 - **Sponsor / Presenter:** Council Members.
 - **Deliberation Summary:** Motion to renew the contract with Beasley & Gilkerson as Council Attorney for 2024, including a 10% increase to the annual stipend (\$7,750), noting no increase had occurred since 2017. Opposing council members raised concerns regarding optics given employee salary freezes.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Webb voted No; all others Yes).

New Business

- **01:09:18 2024 Meeting Calendar:**
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Passed Unanimously).
- **01:09:51 Suspension of Rules & Election of Officers:**

- **Deliberation Summary:** Motion to suspend rules to conduct annual officer elections early (due to it being a non-election year with no membership changes).
 - **Action & Vote Disposition:** Rules suspended by Roll Call Vote. Jessica Piper nominated and approved to continue as Council President; Matt Klevenger nominated and approved as President Pro-Tem.
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5. Open Public Comment / Citizen Forum

- **01:19:31 Cheryl Swingly:** Inquired about an update regarding tax abatement issues concerning solar projects, noting the upcoming January committee meeting.
 - **01:20:40 David Mo:** Addressed solar energy setbacks, arguing that 500-foot setbacks from property lines are easily farmable based on his farming experience and challenging claims of wasted acreage.
 - **01:31:12 Sue Arrington:** Discussed state-recommended solar setbacks (250 feet from dwelling walls) established by the Indiana Office of Energy Development and potential future grant availability for solar-ready communities.
 - **01:27:58 Harold King:** Spoke against current solar ordinance terms, stating lack of protection for non-participating landowners regarding proximity to homes.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Brad Bookout provided an informational overview of the statutory process for Tax Abatements and Economic Revitalization Areas (ERAs) under Indiana code **01:12:04**.
 - The Tax Abatement Committee announced a meeting scheduled for the first week of January to review solar project questions and financial reports.
 - The Planning Commission meeting was announced for the following night at 6:00 PM **01:29:01**.
 - **Adjournment:** Official motion to adjourn carried by unanimous roll call vote at **01:40:36**.
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